

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOSHUA PERSOVAL,

Plaintiff,

**AMENDED VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, CITY OF NEW YORK POLICE DEPARTMENT -
46th Precinct, P.O. JACOB NEWMAN, P.O. CAROLYN DALEY,
P.O. ALBERTO LARA AND P.O. KRYSTAL BATISTA,

Index No.: 800523/2022

Defendants.
-----X

Plaintiff, by his attorney, **Law Offices of Jay H. Tanenbaum**, complaining of the
Defendants, respectfully alleges, upon information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States of America

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988, AND THE FOURTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION.

3. This Court has jurisdiction over each federal claim pursuant to concurrent jurisdiction.

VENUE

4. Venue is properly laid in the Supreme Court of the State of New York, in that the events giving rise to this claim occurred in Bronx County in the State of New York.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PARTIES

6. Plaintiff, Joshua Percival, is, and has been, at all relevant times, a resident of Bronx County, City and State of New York.

7. Defendant, The City of New York, was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant, New York City Police Department, was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

9. Defendant, The City of New York, maintains the New York City Police Department, a duly authorized public authority and/or police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

10. That at all times hereinafter mentioned, defendant, P.O. Newman, was and still is employed with defendant, New York City Police Department.

11. That at all times hereinafter mentioned, defendant, P.O. Carolyn Daley, was and still is employed with defendant, New York City Police Department.

12. That at all times hereinafter mentioned, defendant, P.O. Alberto Lara, was and still is employed with defendant, New York City Police Department.

13. That at all times hereinafter mentioned, defendant, P.O. Krystal Batista, was and still is employed with defendant, New York City Police Department.

14. That prior hereto on October 7, 2021, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment

thereof was duly served on the claimant's behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

15. That a hearing was held by the defendant, The City of New York, pursuant to Municipal Law 50-h on January 10, 2022.

16. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

FACTS

17. On July 19, 2021, at approximately 1:00 a.m., plaintiff, Joshua Percival, was lawfully at or near 74 West 174th Street, in the County of Bronx, City and State of New York.

18. At that time, Defendants, P.O. Jacob Newman, P.O. Carolyn Daley, P.O. Alberto Lara and P.O. Krystal Batista arrived at the location on duty.

19. Without any legal justification or excuse, the defendants, P.O. Newman, unlawfully interrogated, detained, assaulted, battered, tased and arrested the plaintiff.

20. Without any legal justification or excuse, the defendants, P.O. Carolyn Daley, unlawfully interrogated, detained, assaulted, battered, tased and arrested the plaintiff.

21. Without any legal justification or excuse, the defendants, P.O. Alberto Lara, unlawfully interrogated, detained, assaulted, battered, tased and arrested the plaintiff.

22. Without any legal justification or excuse, the defendants, P.O. Krystal Batista, unlawfully interrogated, detained, assaulted, battered, tased and arrested the plaintiff.

23. Plaintiff was not engaged in any unlawful or suspicious activity.

24. Nonetheless Plaintiff was interrogated, detained, assaulted, battered, tased and arrested by Defendant, P.O. Newman, without any legal justification or excuse.

25. Nonetheless Plaintiff was interrogated, detained, assaulted, battered, tased and arrested by Defendant, P.O. Carolyn Daley, without any legal justification or excuse.

26. Nonetheless Plaintiff was interrogated, detained, assaulted, battered, tased and arrested by Defendant, P.O. Alberto Lara, without any legal justification or excuse.

27. Nonetheless Plaintiff was interrogated, detained, assaulted, battered, tased and arrested by Defendant, P.O. Krystal Batista, without any legal justification or excuse.

28. At no time on July 19, 2021, did Plaintiff commit or violation of the law.

29. At no time on July 19, 2021, did defendants possess probable cause to arrest the Plaintiff.

30. At no time on July 19, 2021, did Defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiff.

31. As a result of the foregoing, Plaintiff, **Joshua Percival**, sustained personal, emotional and psychological distress and his constitutional rights.

32. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to be Constitution of the United States of America, and were therefore in violation of 42 U.S.C. Section 1983.

33. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.

34. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages,

practices, procedures, and rules of Defendants, The City of New York and New York City Police Department, all under the supervision of ranking officers of said department.

35. Defendants, collectively and individually, engaged in conduct which constituted custom, usage, practice, procedure or rule of respective municipality/authority, which is forbidden by the Constitution of the United States.

FIRST CLAIM FOR RELIEF AGAINST INDIVIDUALLY NAMED DEFENDANTS FOR FALSE ARREST AND FALSE IMPRISONMENT UNDER FEDERAL LAW, PURSUANT TO 42 U.S.C. §1983.

36. Plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

37. As a result of the Defendants' conduct, Plaintiff was subjected to illegal, improper and false arrest, taken into custody, caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

38. As a result of the foregoing, Plaintiff's liberty was restricted, he was put in fear of his safety and he was falsely arrested without probable cause.

SECOND CLAIM FOR RELIEF FOR MUNICIPAL LIABILITY UNDER 42 U.S.C §1983

39. Plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

40. Defendants interrogated and searched the Plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said search and interrogation would jeopardize Plaintiff's liberty, well-being, safety and violate his constitutional rights.

41. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

42. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures and rules of the defendants, The City of New York and New York City Police Department, all under the supervision of ranking officers of said department.

43. The foregoing customs, policies, usages, practices and procedures and rules of defendants, The City of New York and New York City Police Department, were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

44. Defendant, The City of New York, has grossly failed and train and adequately supervise its police officers in the fundamental of law of interrogation and search where an individual, especially as here, has not committed a crime.

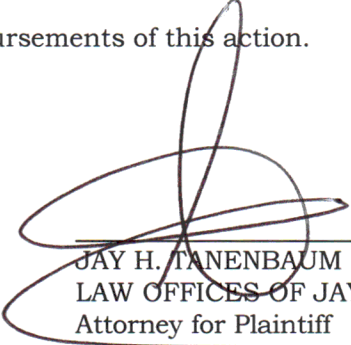
45. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

46. That as a result of the foregoing, Plaintiff Joshua Percival was caused to sustain serious injuries and to have suffered pain, shock and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries, Plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and, as a further result, Plaintiff was and will continue to be rendered unable to perform Plaintiff's normal activities and duties and has sustained a resultant loss therefrom.

47. That as a result of the foregoing, Plaintiff Joshua Percival was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
January 10, 2024



JAY H. TANENBAUM
LAW OFFICES OF JAY H. TANENBAUM
Attorney for Plaintiff
14 Wall Street – Suite 5F
New York, New York 10005
(212) 422-1765
Our File # 555-21J-0059

ATTORNEY'S VERIFICATION

The undersigned, an attorney, admitted to practice in the Courts of the State of New York, shows:

That deponent is the attorney of record for the plaintiff(s) in the within action; that deponent has read the foregoing complaint bill of particulars, and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes that to be true. Deponent further says that the reason this verification is made by deponent and not by plaintiff(s) is that plaintiff(s) reside(s) in a county other than in which deponent maintains his offices.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which he has made or has caused to be made concerning the subject matter of this action, and statements of parties and/or witnesses made herein.

The undersigned affirms that the foregoing statements are under the penalties of perjury:

Dated: New York, N.Y.

Sgd./

JAY H. TANENBAUM

INDIVIDUAL VERIFICATION

STATE OF NEW YORK, COUNTY OF New York, SS:

Joshua Persoval

Being duly sworn, deposes and says:

That deponent is the plaintiff(s) in the within action; that deponent has read the foregoing complaint bill of particulars, and knows the contents thereof; that the same is true except as to those matters therein stated to be alleged upon information and belief, and as to those matters, deponent believes it to be true.

Sgd./

[Signature]

Sworn to before me this

10th day of January, 2024

[Signature]

ELIETTE A. ALVAREZ
Notary Public, State of New York
No. 01AL4726827
Qualified in Richmond County
Commission Expires November 30, 2026

AFFIDAVIT OF SERVICE BY NYSCEF§§

STATE OF NEW YORK
COUNTY OF NEW YORK SS.:

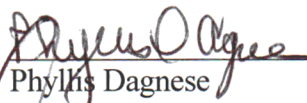
Phyllis Dagnese being duly sworn, deposes and says:

I am over 18 years of age, I am not a party to the action, and I reside in Kings County in the State of New York.

I served a true copy of the annexed **SUPPLEMENTAL SUMMONS AND VERIFIED AMENDED COMPLAINT** on January 10, 2024 upon:

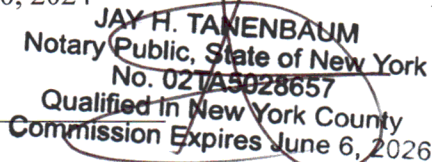
Corporation Counsel
Attorney for Defendants
100 Church Street
New York, New York 10007

by electronically filing said document through the New York State Court Electronic Filing System pursuant to the regulations governing the NYSCEF System (22 NYCRR §§ 202.5, b. 206.5, 206-5 aa, 207.4-a) and the procedure of the NYSCEF System as reflected in the User's Manual approved by the Chief Administrator of the Courts and posted on the NYSCEF website


Phyllis Dagnese

Sworn to before me on January 10, 2024

Notary Public


JAY H. TANENBAUM
Notary Public, State of New York
No. 021A5028657
Qualified in New York County
Commission Expires June 6, 2026

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JOSHUA PERSOVAL,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, CITY OF NEW YORK
POLICE DEPARTMENT - 46th Precinct, P.O. Newman. P.O. John Doe(s) and P.O. Jane Doe(s),

Defendants.

SUPPLEMENTAL SUMMON AND AMENDED VERIFIED COMPLAINT

TO:

LAW OFFICES OF JAY H. TANENBAUM
Attorney for Plaintiff
14 Wall Street - Suite 5F
New York, New York 10005
Tel No.: (212) 422-1765
Fax No.: (212) 425-7492

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the
Courts of New York State, certified that, upon information and belief and reasonable inquiry,
the contentions contained in the annexed document are not frivolous.

Dated: Wednesday, January 10, 2024

Signature

Print Signors Name LAW OFFICES OF JAY H. TANENBAUM